

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO.: EMAIL ADDRESS: ATTORNEY FOR (name):	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
CHILD'S NAME:	
FINDINGS AND ORDERS AFTER 18-MONTH PERMANENCY HEARING (Welf. & Inst. Code, § 366.22)	CASE NUMBER:

1. Eighteen-month permanency hearing

- | | |
|---|--|
| a. Date:
b. Department:
c. Judicial officer (name):
d. Court clerk (name): | e. Court reporter (name):
f. Bailiff (name):
g. Interpreter (name and language): |
|---|--|

	Present	Attorney (name):	Present	Appointed today
h. <u>Party (name):</u>				
(1) Child:	☐		☐	☐
(2) Mother:	☐		☐	☐
(3) Father—presumed:	☐		☐	☐
(4) Father—biological:	☐		☐	☐
(5) Father—alleged:	☐		☐	☐
(6) Legal guardian:	☐		☐	☐
(7) Indian custodian:	☐		☐	☐
(8) De facto parent:	☐		☐	☐
(9) County agency social worker:	☐		☐	☐
(10) Tribal representative:	☐		☐	☐
(11) Other (specify):	☐		☐	☐
(12) Other (specify):	☐		☐	☐
i. Others present in courtroom:				
(1) Court Appointed Special Advocate (CASA) volunteer (name):				
(2) Other (name):				
(3) Other (name):				

2. The court has read and considered and admits into evidence the

- a. ☐ report of social worker dated:
- b. ☐ report of CASA volunteer dated:
- c. ☐ case plan dated:
- d. ☐ Other (specify):
- e. ☐ Other (specify):



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BASED ON THE FOREGOING AND ON ALL OTHER EVIDENCE RECEIVED, THE COURT FINDS AND ORDERS

3. a. ☐ Notice of the date, time, and location of the hearing was given as required by law.
- b. ☐ For a child 10 years of age or older who is not present,
- (1) ☐ the child was properly notified of the right to attend the hearing under Welf. & Inst. Code, § 349(d) and was given an opportunity to be present, and there is no good cause for a continuance to enable the child to be present.
 - (2) ☐ the child was not properly notified of the right to attend the hearing under Welf. & Inst. Code, § 349(d) or the child wished to be present and was not given an opportunity to be present, and
 - (a) ☐ there is good cause for a continuance for a period of time necessary to provide notice and secure the presence of the child.
 - (b) ☐ it is in the best interest of the child not to continue the hearing.
4. ☐ A Court Appointed Special Advocate is appointed for the child.
5. **Parentage**
- a. ☐ The court inquired of the child's parents present at the hearing and other appropriate persons present as to the identity and addresses of all presumed or alleged parents of the child. All alleged parents present during the hearing who had not previously submitted a *Statement Regarding Parentage (Juvenile)* (form JV-505) were provided with and ordered to complete form JV-505 and submit it to the court.
- b. ☐ The clerk of the court is ordered to provide the notice required by Welf. & Inst. Code, § 316.2 to
- (1) alleged parent (*name*):
 - (2) alleged parent (*name*):
 - (3) alleged parent (*name*):
6. **ICWA inquiry**
- The court has inquired of each participant present who has not already been asked whether the participant has any information indicating that the child is a member or citizen of or eligible for membership or citizenship in an Indian tribe or Alaska Native village, has reviewed the evidence of the affirmative and ongoing inquiry by the agency to determine whether the child is or may be an Indian child, and finds (*check one*):
- a. ☐ there is no reason to believe or know that the child is an Indian child. The agency has an affirmative and continuing duty of inquiry to determine whether the child is or may be an Indian child and to report to the court on its inquiry efforts.
- b. ☐ there is reason to believe the child is an Indian child, and (*check one*):
- (1) ☐ the agency has completed further inquiry as required by Welf. & Inst. Code, § 224.2(e), and there is no reason to know that the child is an Indian child; or
 - (2) ☐ the agency is ordered to complete further inquiry as required by Welf. & Inst. Code, § 224.2(e) and file with the court evidence of this inquiry, including all contacts with extended family members, tribes that the child may be affiliated with, the Bureau of Indian Affairs if required, and the California Department of Social Services if required.
- c. ☐ there is reason to know that the child is an Indian child, and
- (1) the agency (*check A or B*):
 - A. ☐ has presented evidence in the record that it has exercised due diligence to identify and work with all of the tribes where the child may be a member or citizen or eligible for membership or citizenship to verify the child's status; or
 - B. ☐ is required to exercise due diligence to identify and work with all of the tribes where the child may be a member or citizen or eligible for membership or citizenship to verify the child's status and provide notice in accordance with Welf. & Inst. Code, § 224.3 and file proof of due diligence and notice with the court.
 - (2) ☐ notice has been provided as required by law; and
 - (3) ☐ the court will treat the child as an Indian child until it is determined on the record that the child is not an Indian child.
- d. ☐ The child is a member or citizen of or eligible for membership or citizenship in, and a biological child of a tribal member or citizen of, the



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Advisements and waivers**7. The court has informed and advised the**

☐ mother ☐ biological father ☐ legal guardian ☐ child
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ Other (specify): ☐ Other (specify):

of the following: the right to assert the privilege against self-incrimination; the right to confront and cross-examine the persons who prepared the reports or documents submitted to the court by the petitioner and the witnesses called to testify at the hearing; the right to subpoena witnesses; the right to present evidence on one's own behalf; and the right of the child and each parent, legal guardian, and Indian custodian to be present and to be represented by counsel at every stage of the proceedings. The court may appoint counsel subject to the court's right to seek reimbursement, if an individual is entitled to appointed counsel and the individual is financially unable to retain counsel.

8. The ☐ mother ☐ biological father ☐ legal guardian ☐ child
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ Other (specify): ☐ Other (specify):

has knowingly and intelligently waived the right to a court trial on the issues, the right to assert the privilege against self-incrimination, the right to confront and cross-examine adverse witnesses, the right to subpoena witnesses, and the right to present evidence on their own behalf.

Case plan development

9. a. ☐ The following were actively involved in the case plan development, including the child's plan for permanent placement:
☐ Child ☐ Mother ☐ Father ☐ Representative of child's identified Indian tribe
☐ Other (specify): ☐ Other (specify):

b. ☐ The following were **not** actively involved in the case plan development, including the child's plan for permanent placement:
☐ Child ☐ Mother ☐ Father ☐ Representative of child's identified Indian tribe
☐ Other (specify): ☐ Other (specify):

The county agency is ordered to actively involve them and submit an updated case plan within 30 days of the date of this hearing.

c. ☐ The following were **not** actively involved in the case plan development, including the child's plan for permanent placement:
☐ Child ☐ Mother ☐ Father ☐ Representative of child's identified Indian tribe
☐ Other (specify): ☐ Other (specify):

The county agency is not required to involve them because these persons are unable, unavailable, or unwilling to participate.

Efforts**10. The county agency**

a. ☐ has

b. ☐ has not

complied with the case plan by making reasonable efforts to return the child to a safe home through the provision of reasonable services designed to aid in overcoming the problems that led to the initial removal and continued custody of the child and by making reasonable efforts to complete whatever steps are necessary to finalize the permanent placement of the child.

11. ☐ The child is an Indian child or there is reason to know that the child is an Indian child, and as set out in detail in the record,

a. affirmative, active, thorough, and timely efforts ☐ have ☐ have not been made to provide remedial services and rehabilitative programs designed to prevent the breakup of the Indian family;



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11. b. these efforts ☐ did ☐ did not include assisting the parent(s) or Indian custodian through the steps of the case plan and with accessing or developing the resources necessary to satisfy the case plan;
- c. to the maximum extent possible, the efforts ☐ were ☐ were not provided in a manner consistent with the prevailing social and cultural conditions and way of life of the child's tribe;
- d. these efforts and the case plan ☐ have ☐ have not been conducted and developed to the maximum extent possible in partnership with the Indian child, the parents, extended family members, Indian custodians and the tribe, and utilized the available resources of the Indian child's extended family, tribe, tribal and other Indian social service agencies, and individual Indian caregivers; and
- e. the active efforts have proved ☐ successful ☐ unsuccessful.

12. The following persons have made the indicated level of progress toward alleviating or mitigating the causes necessitating placement:

	None	Minimal	Adequate	Substantial	Excellent
a. ☐ Mother	☐	☐	☐	☐	☐
b. ☐ Presumed father	☐	☐	☐	☐	☐
c. ☐ Biological father	☐	☐	☐	☐	☐
d. ☐ Legal guardian	☐	☐	☐	☐	☐
e. ☐ Indian custodian	☐	☐	☐	☐	☐
f. ☐ Other (specify):	☐	☐	☐	☐	☐
g. ☐ Other (specify):	☐	☐	☐	☐	☐

Siblings

13. ☐ The child does not have siblings under the court's jurisdiction.
14. ☐ The child has siblings under the court's jurisdiction. *Sibling Attachment: Contact and Placement* (form JV-403) is attached and incorporated by reference.

Health and education

15. a. ☐ A limitation on the right of the parents to make educational decisions for the child is **not** necessary. The parents hold educational rights and responsibilities in regard to the child's education, including those described in rule 5.650(e) and (f) of the California Rules of Court. A copy of rule 5.650 can be obtained from the California Courts website at courts.ca.gov/cms/rules/index/five/rule5_650, or from the court's self-help center.
- b. ☐ A limitation on the right of the parents to make educational decisions for the child is necessary, and those rights are limited as stated in *Order Designating Educational Rights Holder* (form JV-535) filed in this matter. The educational rights and responsibilities of the educational representative are described in rule 5.650 of the California Rules of Court. A copy of rule 5.650(e) and (f) can be obtained from the California Courts website at courts.ca.gov/cms/rules/index/five/rule5_650, or from the court's self-help center.
16. a. The child's educational needs ☐ are ☐ are not being met.
- b. The child's physical needs ☐ are ☐ are not being met.
- c. The child's mental health needs ☐ are ☐ are not being met.
- d. The child's developmental needs ☐ are ☐ are not being met.
17. The child ☐ does ☐ does not have an order authorizing psychotropic medication. The next hearing to review the psychotropic medication order is on (date): .
18. ☐ The additional services, assessments, and/or evaluations the child requires to meet the unmet needs specified in item 16 or other concerns are
- a. ☐ stated in the social worker's report.
- b. ☐ specified here:



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19. ☐ The following persons are ordered to take the steps necessary for the child to begin receiving the services, assessments, and/or evaluations identified in item 18:
- ☐ Social worker
 - ☐ Parent (*name*):
 - ☐ Surrogate parent (*name*):
 - ☐ Educational representative (*name*):
 - ☐ Other (*name*):
20. ☐ The child's education placement has changed since the last review hearing.
- ☐ The child's educational records, including any evaluation regarding a disability, were requested by the child's new school within two business days of the request to enroll and those records were provided by the child's former school to the child's new school within two business days of the receipt of the educational records request.
 - ☐ The child is enrolled in school.
 - ☐ The child is attending school.
21. ☐ For a child who is 10 years of age or older; is in junior high, middle, or high school; and has been under the jurisdiction of the juvenile court for a year or longer, *Status Review Attachment: Sexual and Reproductive Health Services* (form JV-459(A)) has been completed and is attached.
22. a. ☐ The child is 16 years of age or older, and under the requirements of Welf. & Inst. Code, § 16501.1(g)(22),
- ☐ an individual or individuals have been identified to assist the child with applications for postsecondary education, including career and technical education, and related financial aid.
 - ☐ the name of the support person(s) to assist the child is: _____, and the support person's relationship(s) to the child is: _____.
 - ☐ an individual or individuals have not been identified to assist the child with applications for postsecondary education, including career and technical education, and related financial aid.
 - ☐ to assist the child in preparing for postsecondary education, the county agency must add to the case plan and provide the services
 - ☐ stated on the record.
 - ☐ as follows:
- b. ☐ The child is 16 years of age or older and has stated that they do not want to pursue postsecondary education, including career or technical education.
23. ☐ **Child 14 years of age or older**
- ☐ The services stated in the case plan include those needed to assist the child in making the transition from foster care to successful adulthood.
 - ☐ The services stated in the case plan do not include those needed to assist the child in making the transition from foster care to successful adulthood.
 - ☐ To assist the child in making the transition to successful adulthood, the county agency must add to the case plan and provide the services
 - ☐ stated on the record.
 - ☐ as follows:



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24. **Placement and services are ordered as stated in** (check appropriate box and attach indicated form)

- a. ☐ ☐ *Eighteen-Month Permanency Attachment: Child Reunified (Welf. & Inst. Code, § 366.22)* (form JV-441), which is attached and incorporated by reference.
- b. ☐ ☐ *Eighteen-Month Permanency Attachment: Reunification Services Terminated (Welf. & Inst. Code, § 366.22)* (form JV-442), which is attached and incorporated by reference.
- c. ☐ ☐ *Eighteen-Month Permanency Attachment: Reunification Services Continued (Welf. & Inst. Code, § 366.22)* (form JV-443), which is attached and incorporated by reference.

25. ☐ ☐ **Contact with the child is ordered as stated in** (check appropriate boxes and attach indicated forms)

- a. ☐ ☐ *Visitation Attachment: Parent, Legal Guardian, Indian Custodian, Other Important Person* (form JV-400).
- b. ☐ ☐ *Visitation Attachment: Sibling* (form JV-401).
- c. ☐ ☐ *Visitation Attachment: Grandparent* (form JV-402).

26. **All prior orders not in conflict with this order remain in full force and effect.**

27. ☐ ☐ **Other findings and orders**

- a. ☐ ☐ See attached.
- b. ☐ ☐ (Specify):

28. ☐ ☐ **The next hearing is scheduled as follows:**

Hearing date:	Time:	Dept.:	Room:
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- a. ☐ ☐ In-home status review hearing (Welf. & Inst. Code, § 364)
- b. ☐ ☐ Twenty-four-month permanency hearing (Welf. & Inst. Code, § 366.25)
- c. ☐ ☐ Selection and implementation hearing (Welf. & Inst. Code, § 366.26)
(Also schedule a Welf. & Inst. Code, § 366.3 status review hearing within six months.)

Hearing date:	Time:	Dept.:	Room:
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- d. ☐ ☐ Postpermanency hearing (Welf. & Inst. Code, § 366.3)
- e. ☐ ☐ Nonminor dependent status review (Welf. & Inst. Code, § 366.31)
- f. ☐ ☐ Other (specify):

29. ☐ ☐ **The petition is dismissed.** Jurisdiction of the court is terminated. All appointed counsel are relieved of the duty to provide further representation.

30. Number of pages attached: _____

Date:

JUDICIAL OFFICER